

1.

CASE #	CASE NAME	HEARING NAME
CVRI2505329	ONE STOP TREATMENT, LLC vs AURORA RECOVERY	MOTION TO BE RELIEVED AS COUNSEL FOR AURORA RECOVERY

Tentative Ruling:

The motion to be relieved is granted. The order shall be effective upon filing a proof of service of the signed order.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506377	CANTON vs RIVIAN AUTOMOTIVE, INC.	MOTION TO COMPEL

Tentative Ruling:

On June 12, 2025, Plaintiffs Oswaldo Canton and Yanez Sanchez Wealth Inc. leased a 2025 Rivian RIS. Plaintiffs allege they presented the vehicle to Defendant Rivian Automotive, Inc. for repairs of defects, malfunctions, misadjustments, and/or nonconformities and each time they failed to conform the vehicle to warranties, despite representing that they did so after a reasonable number of attempts to repair.

On November 25, 2025, Plaintiffs filed their complaint for damages alleging the following causes of action: 1) Breach of Implied Warranty of Merchantability under the Song-Beverly Act; and 2) Breach of Express Warranty under the Song-Beverly Consumer Warranty Act.

Defendant Rivian Automotive, LLC now moves for an order compelling Plaintiffs to arbitrate their claims in accordance with their arbitration agreements contained in the Lease Agreement, Rivian Motor Vehicle Agreement ("RVMA") and Warranty Agreement. Defendant argues Plaintiffs entered into a lease agreement with Rivian, LLC which contains a binding arbitration agreement and a clause explicitly identifying it as a third-party beneficiary. Defendant argues the FAA governs and requires the parties arbitrate.

Plaintiffs oppose and argue Defendant waived the right to arbitrate by delaying their demand. They argue Defendant has not shown there is any valid agreement to arbitrate or that they agreed to any valid and enforceable arbitration clause. Plaintiffs state their claims do not arise from the lease agreement and Defendant is not a third party beneficiary. They argue they cannot be compelled to arbitration pursuant to the warranty manual. They argue Defendant should be precluded under collateral estoppel from relitigating this issue because it has already been argued and decided in *Malhotra*